Harris County District Court

Cause No. 2024-CV-0041

Samantha Fowler, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-24-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's alleged injuries and damages were not proximately caused by any negligence of Defendant. The collision at issue may have resulted from the acts or omissions of Plaintiff, including following too closely and failing to keep a proper lookout, and Plaintiff's own conduct therefore bars or reduces recovery under the proportionate responsibility provisions of Chapter 33 of the Texas Civil Practice and Remedies Code.

Second, Defendant invokes the doctrine of sudden emergency. Any sudden and unexpected change in traffic conditions immediately before impact left Defendant no reasonable time to react, and Defendant acted as a reasonably prudent person would under the same circumstances.

Third, Plaintiff failed to mitigate damages. To the extent Plaintiff did not obtain reasonable and necessary medical care, or unreasonably delayed or declined recommended treatment, any recovery must be reduced by the amount that reasonable mitigation would have avoided.